

Affidavit – Family law and child support proceedings

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 - RULE 8.15

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify)

Type of proceedings:

- ☒ Family law proceedings
☐ Other (specify)

Filed on behalf of:

Full name: Stephen Christopher Cooke

COURT USE ONLY

Client ID _____

File number (P)NCC3896/2023

Filed at Newcastle

Filed on _____

Court location Building, 97/99 Goulburn Street, Sydney, NSW 2001

Court date _____

Name of person swearing/affirming this affidavit:

Stephen Christopher Cooke

Date of swearing/affirming 19 / 07 / 2024

Part A About the parties

APPLICANT 1

Family name (as used now)

Cooke

Given names (as required)

Stephen Christopher

RESPONDENT 1

Family name (as used now)

Cooke

Given names (as required)

Heather Anne

APPLICANT 2

Family name (as used now)

Given names (as required)

RESPONDENT 2

Family name (as used now)

Given names (as required)

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You **must** also give an email address.

C/- Ramsden Family Law Pty Ltd, Level 3, 1 Castlereagh Street

Sydney

State NSW

Postcode 2000

Phone 1300 749 709

Lawyer's code RAM7921757

Email mshepherd@ramsdenlaw.com.au

Signature of person making this affidavit (deponent)

Signature of witness

Part B About the independent children's lawyer (if appointed)

Independent children's lawyer family name

Given names

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Firm name

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Part C About you (the deponent)

Family name (as used now)

Given names

Cooke	Stephen Christopher
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Gender

☒ Male

☐ Female

☐ X

Usual occupation (if applicable)

Parent and homemaker

What is your address?

You do not have to give your residential address if you are concerned about your safety. You may give another address at which you are satisfied that you will receive documents.

213 Morgan Street

Merewether

State NSW

Postcode 2291

Part D Evidence

- Set out the facts divided into consecutively numbered paragraphs. Each paragraph should be confined to a distinct part of the subject matter.
- Attach extra page(s) if you need more space. Make sure that the page containing the signature (Part E or F) is always the last page of the form. You and the witness to your affidavit must sign the bottom of each additional page.

- I am the Applicant in this Application in a Proceeding and in the substantive proceedings.
- I was born 27 October 1981 in Canada. The Respondent, Heather Anne Cooke ("**Heather**"), was born 31 July 1978 in Australia. We met in Canada when Heather was working and studying there. We married on 26 September 2014.
- We have two children of the marriage. Joshua Finn Cooke ("**Joshua**") was born on 27 January 2017 in Canada and is currently 7 years of age. Christian Finn Cooke ("**Christian**") was born on 20 August 2014 and is currently 9 years of age.
- We moved to Australia in July 2015 to allow Heather to resume working in Newcastle.

Urgency

- I seek that this application be listed on an urgent basis as the sale of 1/213 Morgan Street, Merewether NSW ("**former matrimonial home**") is scheduled to settle on 23 August 2024.

Signature of person making this affidavit (deponent)

Signature of witness

Contracts for sale exchanged on 12 July 2024. The settlement date is 23 August 2024. I seek this Application in a case be heard prior to 23 August 2024.

Background

- 6. Upon our arrival in Australia, Heather continued working fulltime. She took parental leave for 4 months at the time of Joshua’s birth. She has worked fulltime since then. Heather has worked hard in her medical career and has established a successful specialist cardiological practice. She had patients at various hospital including John Hunter, Lingard, Lake Macquarie Hospital and Belmont Hospital.
- 7. Her hours of work have included early morning starts Monday to Friday (leaving home between 6.30-7.30am and returning between home 5.30-6.30pm). Most weekends (being 3 out 4 weekends) Heather would attend at one of the hospitals to see patients for about an hour. Heather would also be on call on weekends when she would need to see patients and she would go to a hospital from 9am to 5pm.
- 8. Heather was also rostered on an on-call roster for John Hunter Hospital Cardiology for at least 28 days per year. She would carry a phone and take calls at anytime of the day, and also go into one of her hospitals.
- 9. I looked after the boys during these hours on weekdays and weekends other than when they were at school or preschool. I have not worked at any time since the move to Australia in 2015. I have devoted my time to looking after the boys and the home.
- 10. Heather moved from the former matrimonial home in December 2023. I have remained in occupation of the home since then. The boys alternated weeks with each of us in the 2023/24 Christmas school holidays. They live with me for 5 nights per fortnight during school terms and half school holidays. Interim financial orders were made by consent on 11 April 2024. Interim parenting orders were made by the court on 23 April 2024.
- 11. Pursuant to Orders 1 and 2 of 11 April 2024, the former matrimonial home was to be listed for sale. Since April 2024, I have devoted many hours to cleaning the home and keeping it clean and ready for the agent, open houses, and ad hoc visits arranged by the agent.
- 12. Steps taken by me include working tirelessly to deep clean the property, which spans three floors, three bedrooms, a basement, and a garage. This also included maintaining both the front and back yards. I hired a Britex carpet cleaner on 29 May 2024, and again on 31 May 2024, to wash rugs, carpet, and upholstery. Many nights, I stayed up until approximately 3am scrubbing the walls of the home to remove stains and marks. As a result, my fingernails began to deteriorate due to the extensive manual labour and the use of cleaning chemicals.
- 13. I have spent a considerable amount of money on various cleaning supplies, including disposable cleaning wipes, toilet cleaner, rubbing alcohol, vinegar, and other necessary items.

Signature of person making this affidavit (deponent)	Signature of witness
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These expenses were incurred solely by me to ensure the property was in optimal condition for viewing by potential buyers.

14. I pressure washed all surfaces, including the front and rear facades of the home, to remove years of mildew and mould buildup. This was a crucial step in improving the property's curb appeal and ensuring it was visually appealing to prospective buyers.
15. I personally funded repairs for pre-existing damage that occurred during the relationship and before the interim orders. This included fixing the ceiling, living room wall, front atrium wall, entrance hallway, master bathroom countertop gaps, a ceramic tile hole, repainting mould-stained basement walls, and touch-ups in the laundry room and main floor closet. I paid a total of \$2,650 to Caslick Coatings Pty Ltd for these repairs.
16. I arranged for and paid for rubbish removal, which included disposing of a broken lawn mower, rusted laundry awning, old laundry baskets, and other long-damaged items accumulated during the relationship. These payments and actions were made to advance the preparation of the property for sale.
17. Contracts for sale for the sale of the former matrimonial home exchanged on 12 July 2024. The sale price is \$1,750,000. The settlement date is 23 August 2024.

My expenses

18. Christian is in Year 4 at Merewether Public School where Joshua is in Year 2. I have made enquiries of rental properties near the boy's school. I anticipate paying rent of around \$800 per week. Given my work record and lack of a rental history, I anticipate having to make a pre-payment of rent, in addition to paying a bond.
19. I also face moving expenses such as removalists.
20. I have filed simultaneously with this Application, a further Amended Financial Statement. Pursuant to the orders made on 11 April 2024, Heather is currently paying the expenses for the home where I continue to live. I have based my anticipated expenses in my recent Financial Statement on reviewing the expenditure related to the former matrimonial home.
21. In respect of some specific items at Part N:
 - (a) I fill the Honda with petrol once per week which costs around \$90.
 - (b) Child minding – I have allowed for both boys using before and after school care on average 3 afternoon (\$50 per boy) and 2 mornings (\$30 per boy) each fortnight.
 - (c) I see both a GP and a psychiatrist, Dr Moysey, who has diagnosed me with ADHD and prescribed medication.
 - (d) Chemist/pharmaceutical – I have been prescribed medication for ADHD which costs \$17 per week. Christian has also been diagnosed with ADHD and I purchase his medication which he takes with me.

My endeavours to obtain employment

Signature of person making this affidavit (deponent)

Signature of witness

22. My last employment was in Canada in 2015 as an Account Receivable Insurance Broker. Following the separation, I commenced taking steps to obtain employment including:
- (a) Commenced online training in IT systems;
 - (b) Prepared the CV which is attached and marked **Annexure A**;
 - (c) Established a LinkedIn profile which is attached and marked **Annexure B**;
 - (d) Registered on seek.com and monitored seek.com for positions which is attached and marked **Annexure C**;
 - (e) Attended an employment clinic for jobseekers who have not worked previously in Australia. This was organised by the University of Newcastle.
 - (f) Had interviews for positions including with Rashays and Diamond IT.
 - (g) Spoken with recruitments consultants including Morgan Consulting and Northbridge Recruitment.
23. I have also had to spend time with lawyers making my Initiating Application in December 2023, attend parenting mediation in January, there were two court dates in April and a property mediation in May. In addition, I dealt with agents and tradespeople and cleaners in respect of the sale of the home.
24. I wish to obtain employment in the Newcastle area so I can be close to the boys' school.
25. I was offered an unpaid internship with Diamond IT for 3 months. I had not previously been offered another position and therefore accepted this offer. The three months commenced on 15 July 2024. I am hopeful that I will obtain paid employment with Diamond IT for \$50,000 per annum. The Internship Agreement attached and marked **Annexure D** shows a start date of 8 July. As I had the boys during the first half of the July school holidays, Diamond IT moved the start date back a week.

Arrears of spousal maintenance

26. Order 7 of 11 April 2024 provides for Heather to pay me spousal maintenance of \$1,200 per week commencing 12 April 2024. There have been 12 weeks to the date of my swearing this affidavit making a total of \$14,400. She has only paid \$10,977 leaving arrears of \$3,423.

Arrears of the mortgage payments

27. Order 4 of 11 April 2024 provides for Heather to pay all costs in relation to the former matrimonial home. There are three Westpac home loans for the property being:
- (a) Rocket Repay Home Loan BSB: 037-173 #216802
From April 11, 2024, to June 26, 2024, the monthly contracted repayment amount of \$3,984.00 has not been met. On 19 April 2024, a deposit of \$1,290.50 was made, resulting in a shortfall of \$2,693.50. On 3 and 17 May 2024, deposits of \$1,290.50 each were made, totalling \$2,581.00, resulting in a shortfall of \$1,403.00. On 14 June 2024, a

Signature of person making this affidavit (deponent)

Signature of witness

deposit of \$1,290.50 was made, resulting in a shortfall of \$2,693.50. Consequently, the total shortfall over this period amounts to \$6,790.00.

(b) Rocket Repay Home Loan BSB: 037-173 #257671

From 11 April 2024 to 26 June 2024, the monthly contracted repayment amount of \$3,984.00 for this Rocket Repay Home Loan has not been met. On 26 April 2024, a deposit of \$1,242.00 was made, resulting in a shortfall of \$2,742.00. On 27 May 2024, a deposit of \$1,242.00 was made, again resulting in a shortfall of \$2,742.00. On 26 June 2024, a deposit of \$1,242.00 was made, leading to a shortfall of \$2,742.00. Consequently, the total shortfall over this period amounts to \$8,226.00.

(c) Rocket Repay Home Loan BSB: 037-173 #257778

From 11 April 2024 to 26 June 2024, the monthly contracted repayment amount of \$3,984.00 for this Rocket Repay Home Loan has not been met. On 26 April 2024, a deposit of \$1,649.00 was made, resulting in a shortfall of \$2,335.00. On 27 May 2024, a deposit of \$1,649.00 was made, again resulting in a shortfall of \$2,335.00. On 26 June 2024, a deposit of \$1,649.00 was made, leading to a shortfall of \$2,335.00. Consequently, the total shortfall over this period amounts to \$7,005.00.

28. Annexed hereto and marked **Annexure E** are statements for the aforementioned loans.

Order 2(e) of 11 April 2024

29. Order 2(e) provides that Heather and I each receive \$200,000 from the sale of the former matrimonial home. At the time of the order being made, agents had not yet been engaged and I did not know the selling price.

30. The sale price is \$1,750,000. From this, the following will be paid:

(a) Three Westpac home loans #7671 (being approximately \$186,326), #7778 (being approximately \$247,343), and #6802 (being approximately \$596,069) making a total of \$1,029,738.

(b) Selling costs of \$31,500

This will leave a balance of \$688,762.

31. In Heather's Amended Response filed on 8 April 2024, she seeks to keep 703/1 Como Crescent, Southport QLD ("**Southport property**"), retain all of her superannuation, retain the Audi with me to receive the Honda vehicle.

32. The current assets are set out below.

<u>ASSETS</u>		
<u>Description</u>	<u>Ownership</u>	<u>Estimated Value</u>
1/213 Morgan Street, Merewether NSW (likely net sale proceeds)	Joint	E \$683,264
703/1 Como Crescent, Southport QLD	Heather	E \$520,000

Signature of person making this affidavit (deponent)

Signature of witness

Westpac account #6533	Heather	NIL
Westpac account #6525	Heather	NIL
Westpac offset #2136 (Offset account for Southport property as at 9/7/24)	Heather	\$16,429
2020 Audi Q3 Wagon #EIN83R motor vehicle	Heather	E \$50,000
2015 Honda CRV #DAI47C motor vehicle	Heather	E \$14,500
Heather Anne Cooke ABN 79 687 721 943	Heather	NIL
Heather Anne Cooke Discretionary Trust	Heather	NIL
Telstra Shares - 552 @ \$3.64 on 25.06.2024	Heather	E \$2,009
Praemium Prae investments portfolio #8788	Stephen	E \$100,000
Home contents (including home entertainment)	Joint	E \$15,000
Interim property settlement	Stephen	E \$50,000
Total estimate		E \$1,451,202
<u>LIABILITIES</u>		
<u>Description</u>	<u>Ownership</u>	<u>Estimated Value</u>
Westpac home loan #2919 (for Southport property)	Heather	\$222,479
Westpac car loan #6300 (Audi)	Heather	\$13,000
Total estimate		\$235,479
<u>SUPERANNUATION</u>		
<u>Description</u>	<u>Ownership</u>	<u>Estimated Value</u>
QSuper	Heather	\$330,454
Future Super	Stephen	\$164,304
Total estimate		\$494,758
Total Net Property Pool		E \$1,710,481

33. The above does not include the funds removed by Heather in November 2023 from the following joint accounts:

Account ending #2594	\$ 38,470.58
Accounting ending #5063	\$ 178,201.51
Accounting ending #7778	\$ 163,967.6
Accounting ending #2594	\$ 3,920
Accounting ending #5055	\$ 4,102

Signature of person making this affidavit (deponent)

Signature of witness

34. The assets above do not include legal expenses paid by each of us. I have paid \$127,000 to my previous solicitors and \$31,508 to my current solicitors and using funds of \$90,000 borrowed by me from JustFund and also \$43,000 from the Praemum Prae investment and the balance from the payment of \$50,000 I received pursuant to the interim orders of 11 April 2024. Heather's solicitor's costs notice filed on 9 July 2024 shows Heather has paid legal expenses of \$83,556. Annexed hereto and marked **Annexure F** are the most recent costs notices filed by the solicitors for both Heather and myself.
35. In relation to my Justfund debt which I used to pay part of my legal expenses, the amount borrowed from Justfund was \$80,000. The interest rate is 9.85% and the total amount owing is \$92,000. A copy a Justfund statement dated 16 July 2024 is annexed hereto and marked **Annexure G**.
36. If I retain the items listed below (including the entirety of the Merewether sale proceeds) I would receive \$1,012,568 or 60% of the pool above.

<u>ASSETS</u>	
<u>Description</u>	<u>Estimated Value</u>
1/213 Morgan Street, Merewether NSW (likely net sale proceeds)	E \$683,264
Praemium Prae investments portfolio #8788	E \$100,000
Home contents (including home entertainment)	E \$15,000
Interim property settlement	E \$50,000
Future Super	\$164,304
<u>Total retained by me (estimate)</u>	E \$1,012,568

37. Heather's affidavit of 24 April 2024 (at para 85) refers to her only asset at cohabitation being the Southport property with a purchase price of \$310,000 and that she paid a 5% deposit. I seek 60% of the pool on the basis of equal contributions and an adjustment of 10% due to the difference in our earning capacities. If Heather receives \$200,000 (or any amount) from the Merewether property sale proceeds, there will be insufficient for me to receive 60%.

Trust Account

38. Order 2(f) made on 11 April 2024 provided that the net proceeds of sale from the sale of the former matrimonial home are to be held in the conveyancer's trust account. I am informed by the conveyancer, Kent Conveyancing, that they do not have a trust account. As such, I seek an order that the net proceeds of sale be held by my solicitors, Ramsden Family Law.

Signature of person making this affidavit (deponent)

Signature of witness

Part E Signature

I *swear /*affirm the contents of this affidavit are true

Signature of Deponent

Place SYDNEY

Date 19 / 07 / 2024

Before me (signature of witness)

Matthew Shepherd

Full name of witness (please print)

- ☐ Justice of the Peace
☐ Notary public
☒ Lawyer
☐ Other authorised person (specify)

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000. This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.

This affidavit was prepared / settled by ☐ deponent/s
☒ lawyer

Matthew Shepherd

RAM7921757

PRINT NAME AND LAWYER'S CODE

Part F

Alternative jurat for non-English speaking affidavit

Use this alternative jurat for the swearing/affirming of the affidavit and the translator's certificate.
See Rule 8.17 of the Family Law Rules.

Interpreter/translator's certification

I, _____, certify that I understand the English language and the _____ language, and that I have truly interpreted to the deponent (named in Part C) the contents of this affidavit and the oath or affirmation which was administered.

Signature of interpreter

Date ____/____/____

Sworn* /affirmed* by the deponent through the interpretation of:

Interpreter's full name

Address

Language

Signature of Deponent

Place _____

Date ____/____/____

Before me (signature of witness)

Full name of witness (please print)

- ☐ Justice of the Peace
☐ Notary public
☐ Lawyer
☐ Other authorised person (specify)

This affidavit was prepared / settled by ☐ deponent/s
☐ lawyer

Matthew Shepherd
RAM7921757

PRINT NAME AND LAWYER'S CODE

**“Annexure A”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE**

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure A**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor

Stephen Christopher Cooke

stephencooke.c@gmail.com | 0412846712 | Merewether, NSW, 2291

Key skills

Scripting: Familiar with scripting languages like Python and Bash for automation and task automation.

- **OpenVPN Server Setup and Certificate Management:**
Proficient in configuring and deploying OpenVPN servers to establish secure and encrypted connections for remote access and site-to-site communications. Skilled in creating, signing, and managing SSL/TLS certificates for authentication and data encryption, ensuring robust network security.
- **OpenWrt Firmware Customization and VLAN Configuration:**
Proficient in customizing and compiling firmware for OpenWrt-based devices like routers and access points. Skilled in optimizing device performance, adding custom features, and implementing VLANs for secure and efficient network segmentation.
- **Custom Kernel Compilation:** Skilled in custom kernel compilation for various devices, enhancing performance and tailoring software to specific needs.
- **Linux Proficiency:** Extensive experience with various Linux

Objective

Motivated IT professional with strong problem-solving skills and a solid foundation in Windows Operating Systems, Linux environments, TCP/IP networking, and firewall configuration. Seeking to join Diamond IT as a Tier 1 Support Analyst, aiming to provide excellent customer service and technical support while contributing to the company's success.

Experience

- Excellent time management and organizational skills
- Proficient in Windows Operating Systems and various Linux distributions (Arch Linux, Fedora, Ubuntu Server, Linux Mint)
- Strong understanding of TCP/IP networking, DNS, routing, and firewall configuration
- Experience in scripting languages like Python and Bash
- Dedicated to delivering exceptional customer service.
- Strong communication skills, both face-to-face and over the phone
- Currently pursuing CompTIA Security+ and Network+ certifications.

IT Project Work

Nextcloud Self-Hosting via Docker

- Deployed and managed Nextcloud instances on a self-hosted server using Docker.
- Ensured secure and private file synchronization and collaboration.

Let's Encrypt SSL Certificate Configuration

- Set up and configured Let's Encrypt SSL certificates to secure web applications.
- Ensured encrypted HTTPS connections, maintaining data privacy and integrity.

Nginx Reverse Proxy Setup

- Configured Nginx as a reverse proxy to efficiently route web traffic.
- Optimized performance and handled multiple services effectively.

Cloudflare Integration for Security

- Integrated Cloudflare's CDN and DDoS protection services.
- Enhanced security and mitigated potential threats.

distributions, including Arch Linux, Fedora, Debian, Linux Mint. Proficient in system setup, configuration, and administration for these platforms. Skilled in using command-line tools and shell scripting to automate tasks and troubleshoot issues.

• **Virtualization Knowledge:**

Knowledgeable in virtualization technologies, including Oracle VM VirtualBox, for project development and creating isolated environments.

Private Domain Hosting via Cloudflare

- Managed DNS settings and hosted a private domain.
- Leveraged Cloudflare's proxy services for improved privacy and server IP protection.

OpenWRT Customization and VLAN Configuration

- Customized and compiled OpenWRT firmware for routers and access points.
- Implemented VLANs for secure and efficient network segmentation.
- Administered a home network featuring three Dynalink DL-WRX36 routers and multiple DIR-505 travel routers, utilizing a custom OpenWRT build to ensure seamless connectivity with 802.11r and traffic isolation through VLANs.

Explore my IT projects in detail at: [<https://cloud.cantenna.xyz>]

Username: InByteWeTrust

Password: Th!s!sS3cur3#

Education

RMIT via Open Universities Australia (OUA)

Bachelor of Information Technology (Incomplete)

2017

COSC2678 Building IT Systems
High Distinction (HD)

2016

COSC2452 Introduction to Programming
Distinction (DI)
COSC2196 Intro to Info Technology
Distinction (DI) history

Career history

Account Executive at Aon

MARCH 2010 – JUNE 2015

As an accomplished Account Executive at Aon, specializing in Account Receivable Insurance, I excelled in providing innovative solutions for both domestic and international trade risks and exposures. My role encompassed achieving and surpassing new business targets, ensuring unparalleled client service and retention, managing Canadian exposures within international Aon programs, and cultivating robust relationships with insurance markets.

Throughout my tenure, I consistently exceeded new business targets, earning positive performance reviews, and receiving well-deserved performance bonuses. A noteworthy achievement includes being honoured with the 2012 Summit North Award for Top Producer, a testament to my exceptional contributions to the organization.

Sales Agent at Coface
MARCH 2006 – JUNE 2010

As a Sales Agent at Coface Canada, I played a pivotal role in managing and expanding an existing portfolio of clients while driving new business development initiatives. My multifaceted responsibilities encompassed strategic marketing, orchestrating prospect meetings, delivering impactful presentations, generating quotations, and overseeing mid-term client servicing.

Noteworthy achievements include the successful execution of targeted marketing campaigns, resulting in substantial client growth. Through a proactive approach, I consistently identified and capitalized on opportunities to expand relationships within the existing client base. The outcome was not only quantitative, as evidenced by impressive client growth percentages, but also qualitative, with a sustained high level of client satisfaction throughout my tenure.

This experience not only honed my sales and marketing skills but also underscored my commitment to delivering exceptional client service. In leveraging a comprehensive approach, I successfully navigated the complexities of maintaining client satisfaction while achieving notable business growth.

Customer Service Representative at Minacs
JUNE 2003 – JUNE 2004

Minacs was a significant player in the outsourcing industry, providing comprehensive business process outsourcing services, including customer lifecycle management, marketing, finance and accounting, procurement, and IT services. I was promoted to work on the Bell account after just three months due to my demonstrated customer service excellence. Additionally, I was assigned to the Government of Ontario account based on my recognized customer service skills.

Retail at Compucentre
AUGUST 2002 – JUNE 2003

My responsibilities included providing I.T. support such as computer repairs and upgrades, and conducting face-to-face sales to help customers find the right products. Due to my outstanding sales performance and exceptional customer service skills, I was promoted to supervisor, where I managed store operations and supervised staff.

Customer Service Representative at Georgeson Shareholder
JULY 2001 – AUGUST 2002

At Georgeson Shareholder, a global leader in strategic shareholder engagement and proxy solicitation, I handled various responsibilities with shareholders, including proxy solicitation and shareholder communication. My strong people skills were recognized, and I was promoted to Assistant Supervisor. In this role, I oversaw customer service operations, ensuring high levels of client satisfaction and efficient resolution of shareholder inquiries.

“Annexure B”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure B**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor



OPEN
SOURCE



Stephen Cooke ✓ (He/Him)



Freelance (Self employed)

Entrepreneurial Explorer | Developing IT Infrastructure Skills | Delivering Open-Source Solutions

Merewether Heights, New South Wales, Australia · [Contact info](#)

18 connections

Open to

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Private to you

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Complete 2 steps to achieve **All-star**



Which university or school did you attend? ✕

Members who include a school receive up to 2.2 times as many profile views.

[Add education](#)



Write a summary to highlight your personality or work experience

Members who include a summary receive up to 3.9 times as many profile views.

[Add a summary](#)

Contact

0412846712 (Mobile)
stephencooke.c@gmail.com

www.linkedin.com/in/stephen-cooke-b853702ab (LinkedIn)
cloud.cantenna.xyz (Portfolio)
github.com/CookeInCode/ (Other)

Top Skills

Troubleshooting
Analytical Skills
Communication

Stephen Cooke

Entrepreneurial Explorer | Developing IT Infrastructure Skills |
Delivering Open-Source Solutions
Merewether Heights, New South Wales, Australia

Experience

Freelance (Self employed)

Networks & Systems Administration

July 2015 - Present (9 years 1 month)

Merewether Heights, New South Wales, Australia

Passionate about IT exploration, Linux environments (Arch Linux, Fedora, Ubuntu Server, Linux Mint), system setup, configuration, and administration. Actively contribute to open-source projects and engage in creative Raspberry Pi endeavours for home automation and IoT solutions. Prioritize cybersecurity and data protection awareness. Interested in network optimization for seamless connectivity and enhanced performance. Enthusiastic about web development technologies and showcasing IT skills through personal projects. Utilize virtualization (Oracle VM VirtualBox) for software development in isolated environments.

Aon

Trade Credit Account Executive with the Financial Service Group

March 2010 - June 2015 (5 years 4 months)

Toronto, Ontario, Canada

As an accomplished Account Executive at Aon, specializing in Trade Credit, I excelled in providing innovative solutions for both domestic and international trade risks and exposures. My role encompassed achieving and surpassing new business targets, ensuring unparalleled client service and retention, managing Canadian exposures within international Aon programs, and cultivating robust relationships with insurance markets.

Throughout my tenure, I consistently exceeded new business targets, earning positive performance reviews, and receiving well-deserved performance bonuses. A noteworthy achievement includes being honoured with the 2012 Summit North Award for Top Producer, a testament to my exceptional contributions to the organization.

Coface

Sales Agent

March 2006 - June 2010 (4 years 4 months)

Toronto, Ontario, Canada

As a Sales Agent at Coface Canada, I played a pivotal role in managing and expanding an existing portfolio of clients while driving new business development initiatives. My multifaceted responsibilities encompassed strategic marketing, orchestrating prospect meetings, delivering impactful presentations, generating quotations, and overseeing mid-term client servicing. Noteworthy achievements include the successful execution of targeted marketing campaigns, resulting in substantial client growth. Through a proactive approach, I consistently identified and capitalized on opportunities to expand relationships within the existing client base. The outcome was not only quantitative, as evidenced by impressive client growth percentages, but also qualitative, with a sustained high level of client satisfaction throughout my tenure.

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Upgrade Free



Stephen Cooke

Entrepreneurial Explorer
Open-Source Solutions

Merewether Heights, New S

10 connections

Open to work

System Administrator role

Show details

Suggested for you

Private to you

Intermediate

Complete 2 steps to achieve

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attend?

Members who include a s

times as many profile view

Add education

×

Edit intro

Name pronunciation

This can only be added using our mobile app

Pronouns

He/Him

Let others know how to refer to you.

Learn more about [gender pronouns](#).

All LinkedIn members

Headline*

Entrepreneurial Explorer | Developing IT Infrastructure Skills | Delivering Open-Source Solutions

Get AI suggestions with Premium

Current position

Position*

Please select

Position is a required field

Add new position

Industry*

IT Services and IT Consulting

Learn more about [industry options](#)

Education

Save

Add a summary

**“Annexure C”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE**

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure C**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor



Stephen Cooke

✓ Identity verified as Stephen Christopher Cooke

Passionate IT professional with familiarity in Python, Bash, OpenVPN/WireGuard, Linux admin, and network security, including VLAN segmentation. Proven hands-on experience in building IT infrastructure, deploying Docker services like Nextcloud, and securing with Let's Encrypt SSL, Nginx, and Cloudflare. Engaged in open source and Raspberry Pi IoT. Former Aon Canada Account Executive, exceeding targets in brokering accounts receivable insurance.

Career history

Information Technology Infrastructure Specialist

Self employed

Jul 2015 - Present (9 years)

As a seasoned IT enthusiast, my expertise lies in scripting languages like Python and Bash for task automation, OpenVPN server setup, SSL/TLS certificate management, and network security. I excel in OpenWrt firmware customization, VLAN configuration, and custom kernel compilation to ensure optimal device performance and security. Proficient across various Linux distributions, including Arch Linux, Fedora, Ubuntu Server, and Linux Mint, I specialize in system setup, configuration, and administration using command-line tools and shell scripting for seamless automation. I have hands-on experience with virtualization technologies like Oracle VM VirtualBox, successfully deploying and managing Nextcloud instances using Docker. Additionally, I have configured Let's Encrypt SSL certificates, optimized web traffic routing through Nginx reverse proxy setup, and integrated Cloudflare services for enhanced security. My passion for IT exploration, open-source contributions, and Raspberry Pi projects drives my commitment to staying at the forefront of industry trends.

Less ^

Licensed Commercial Broker Account Executive

Aon Corporation

Mar 2010 - Jun 2015 (5 years 4 months)

As an accomplished Account Executive at Aon, specializing in Trade Credit, I excelled in providing innovative solutions for both domestic and international trade risks and exposures. My role encompassed achieving and surpassing new business targets, ensuring unparalleled client service and retention, managing Canadian exposures within international Aon programs, and cultivating robust relationships with insurance markets.

Throughout my tenure, I consistently exceeded new business targets, earning positive performance reviews, and receiving well-deserved performance bonuses. A noteworthy achievement includes being honored with the 2012 Summit North Award for Top Producer, a testament to my exceptional contributions to the organization.

Licensed Sales Agent

Coface

Mar 2006 - Jun 2010 (4 years 4 months)

As a Sales Agent at Coface Canada, I played a pivotal role in managing and expanding an existing portfolio of clients while driving new business development initiatives. My multifaceted responsibilities encompassed strategic marketing, orchestrating prospect meetings, delivering impactful presentations, generating quotations, and overseeing mid-term client servicing.

Noteworthy achievements include the successful execution of targeted marketing campaigns, resulting in substantial client growth. Through a proactive approach, I consistently identified and capitalized on opportunities to expand relationships within the existing client base. The outcome was not only quantitative, as evidenced by impressive client growth percentages, but also qualitative, with a sustained high level of client satisfaction throughout my tenure.

This experience not only honed my sales and marketing skills but also underscored my commitment to delivering exceptional client service. In leveraging a comprehensive approach, I successfully navigated the complexities of maintaining client satisfaction while achieving notable business growth.

Education

Bachelor of Information Technology

RMIT

In progress

2017

COSC2678 Building IT Systems
High Distinction (HD)

2016

COSC2452 Introduction to Programming
Distinction (DI)
COSC2196 Intro to Info Technology
Distinction (DI)

Licences & certifications

Australian Manual Drivers Licence  Verified

Skills

Open Source Network Design Network Administration Linux Kernel

Linux Administration Disaster Recovery DevOps Cybersecurity

Cloud Technologies Cloud Computing

Languages

English

 **SEEK Pass verified** - SEEK Pass is a secure and trusted way to verify and share employment-related credentials. [Visit SEEK Pass](#)

**“Annexure D”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE**

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure D**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor



Stephen Cooke <stephencooke.c@gmail.com>

Introduction

7 messages

Martin Thurgate <mthurgate@diamondit.com.au>

Wed, May 29, 2024 at 3:55 PM

To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>, Brooke Jackson <bjackson@diamondit.com.au>

Cc: Jamie Martin <JMartin@diamondit.com.au>, Chris Cox <ChrisC@diamondit.com.au>, Robert Buck <rbuck@diamondit.com.au>

Hi Stephen,

Rob mentioned that you have interest in the Tier 1 Support Desk role that we have available at the moment.

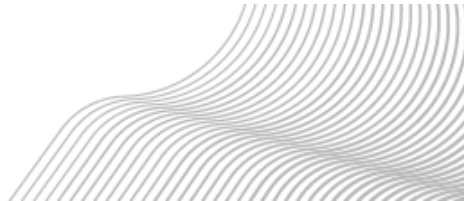
We'd love to hear more! If you can send your resume through that would be great. Brooke will then reach out to have a chat with you.

We look forward to hearing from you.

Cheers,

Martin

Martin Thurgate (B AppSci(Comp), MCSE)
Director



| p 1300 307 907 | w diamondit.com.au

**Stephen Cooke** <stephencooke.c@gmail.com>

Thu, May 30, 2024 at 1:34 PM

To: Martin Thurgate <mthurgate@diamondit.com.au>

Cc: Brooke Jackson <bjackson@diamondit.com.au>, Jamie Martin <JMartin@diamondit.com.au>, Chris Cox

<ChrisC@diamondit.com.au>, Robert Buck <rbuck@diamondit.com.au>

Hi Martin,

Thank you for reaching out regarding the Tier 1 Support Desk role. I'm excited about the opportunity and am very interested in discussing it further.

As requested, I have attached my cover letter and resume for your review. I look forward to hearing from Brooke to arrange a time for a chat.

Thank you again for considering my application.

Best regards,

Stephen

[Quoted text hidden]

2 attachments**Stephen_Cooke_Cover_Letter_30_05_2024.pdf**

121K

**Stephen_Cooke_Resume_30_05_2024.pdf**

474K

Brooke Jackson <bjackson@diamondit.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Chris Cox <ChrisC@diamondit.com.au>

Fri, May 31, 2024 at 1:52 PM

Hi Stephen,

Thanks again for your time earlier today. As mentioned, please see below Teams link and information to have a chat with Chris and I further about the role we have available.

Date: Tuesday 4th June
Time: 9.30am
Location: Teams meeting (link below)

Interview Panel: Chris Cox, Head of Infrastructure & Security Solutions
Brooke Jackson, Head of People & Culture.

We will run you through a technical interview to see where your knowledge is at. There will also be a troubleshooting scenario and some general business questions.

Should you wish to take a look, our website is www.diamondit.com.au

If you wouldn't mind responding to this email so as I know you have received the information that would be appreciated.

Thanks,

Brooke

Microsoft Teams [Need help?](#)

Join the meeting now

Meeting ID: 447 086 169 351

Passcode: JXB9yA

Dial in by phone

+61 2 8318 0088,,860300565# Australia, Sydney

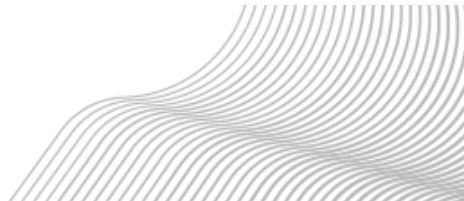
[Find a local number](#)

Phone conference ID: 860 300 565#

For organizers: [Meeting options](#) | [Reset dial-in PIN](#)



Brooke Jackson
Head of People and Culture



| p 1300 307 907 | w diamondit.com.au



From: Stephen Cooke <stephencooke.c@gmail.com>

Sent: Thursday, May 30, 2024 1:35 PM

To: Martin Thurgate <mthurgate@diamondit.com.au>

Cc: Brooke Jackson <bjackson@diamondit.com.au>; Jamie Martin <JMartin@diamondit.com.au>; Chris Cox <ChrisC@diamondit.com.au>; Robert Buck <rbuck@diamondit.com.au>

Subject: Re: Introduction

You don't often get email from stephencooke.c@gmail.com. [Learn why this is important](#)

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Brooke Jackson <bjackson@diamondit.com.au>
Cc: Chris Cox <ChrisC@diamondit.com.au>

Fri, May 31, 2024 at 2:14 PM

Hi Brooke,

Thank you for your email and for scheduling the interview.

I confirm that I have received the information and the Teams link. I look forward to speaking with Chris and yourself on Tuesday, 4th June at 9.30am.

Thanks again for the opportunity.

Best regards,

Stephen

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Brooke Jackson <bjackson@diamondit.com.au>
Cc: Chris Cox <ChrisC@diamondit.com.au>

Tue, Jun 4, 2024 at 11:23 AM

Dear Brooke and Chris,

Thank you for the opportunity to interview for the Tier 1 Support Desk position at Diamond IT. It was great to meet you both and learn more about the team and the role.

I am excited about the chance to contribute to Diamond IT and support your clients with top-notch technical service. I appreciate your time and consideration and look forward to the possibility of joining your team.

Best regards,

Stephen

[Quoted text hidden]

Chris Cox <ChrisC@diamondit.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>, Brooke Jackson <bjackson@diamondit.com.au>

Wed, Jun 26, 2024 at 4:05 PM

Hi Stephen,

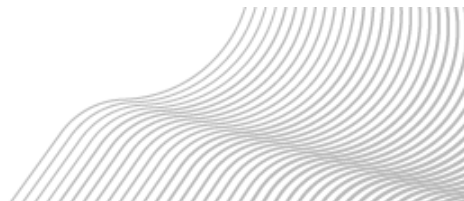
I just wanted to reach out to you and say that we are still very interested in working with you and we are just in the process of sorting out the logistics of how we approach the proposed internship. Please hang tight and we'll come back to you within the next few business days on next steps.

Apologies for the delay!

Cheers

Chris Cox (GCertCloudComp&Virtual, MCSE: Comm, HP ASE:SSA, NSE4)
Head of Infrastructure and Security Solutions

DIAMOND
Helping you Succeed



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**SUBSCRIBE**

To Our eNews

[Quoted text hidden]

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Chris Cox <ChrisC@diamondit.com.au>
Cc: Brooke Jackson <bjackson@diamondit.com.au>

Wed, Jun 26, 2024 at 5:15 PM

Hi Chris,

Thank you for reaching out. I appreciate the update and your continued interest. I understand that arranging the logistics can take some time, so no worries about the delay.

I look forward to your update regarding the next steps.

Cheers,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]



19 Warabrook Boulevard

Warabrook NSW 2304

1300 307 907

Internship Agreement

This Internship Agreement ("Agreement") is made and entered into as of 12th July 2024, by and between:

Company:

Diamond Information Technology
19 Warabrook Boulevard, Warabrook NSW 2304
ABN: 76082003227
("Company")

Intern:

Stephen Cooke
Unit 1, 213 Morgan Street, Merewether NSW 2291
("Intern")

1. Internship Role

The Company agrees to engage the Intern in the position of Tier 1 Support Analyst.

2. Duration of Internship

This internship will commence on Monday 15th July 2024 and will conclude on 30th September 2024, unless terminated earlier in accordance with the provisions of this Agreement.

3. Nature of Internship

The Intern acknowledges that this internship is educational and for the purpose of providing practical experience in Information Technology. The Intern will not receive any wages for the duration of this internship, as the primary benefit is the educational experience gained.

4. Work Hours

The Intern agrees to perform the internship for 35 hours per week, on a schedule agreed upon by both parties. This schedule may be subject to change with mutual agreement.

5. Supervision and Training

The Company will provide the Intern with appropriate supervision and training materials, including exam vouchers to ensure the Intern gains practical skills and knowledge relevant to their field of study. In the event that the Internship does not lead to paid employment, the Intern will be responsible for covering their own exam costs.

6. No Employment Relationship

The Intern acknowledges that this internship does not constitute an employment relationship. As such, the Intern is not entitled to employee benefits such as minimum wage, leave entitlements, or superannuation.



19 Warabrook Boulevard

Warabrook NSW 2304

1300 307 907

7. Compliance with Fair Work Legislation

This Agreement is intended to comply with the Fair Work Act 2009 (Cth) and other relevant legislation. The Company will ensure that the Intern's duties, hours, and conditions of the internship align with the guidelines provided by the Fair Work Ombudsman.

8. Confidentiality

The Intern agrees to keep confidential all proprietary information, trade secrets, and other business information of the Company obtained during the internship. This obligation of confidentiality will survive the termination of this Agreement.

9. Intellectual Property

Any intellectual property developed by the Intern during the course of the internship will be the property of the Company. The Intern agrees to assign all rights, title, and interest in such intellectual property to the Company.

10. Termination

Either party may terminate this Agreement at any time with [2] days' written notice. The Company may terminate this Agreement immediately for cause, including but not limited to breach of confidentiality, misconduct, or failure to perform duties.

11. General Provisions

- **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of the State of New South Wales.
- **Entire Agreement:** This Agreement constitutes the entire agreement between the parties and supersedes all prior understandings, representations, and agreements.
- **Amendment:** This Agreement may only be amended in writing signed by both parties.

12. Internship Completion

At the end of the 3 month Internship, our expectation is that the following exams will be completed:

- CompTIA Networking +
- MS- 102: Microsoft 365 Administrator
- AZ-800: Adminstrating Windows Server Hybrid Core Infrastructure

Upon successful completion of these exams, The Company will offer full time employment in the role of Tier 1 Support Analyst.



19 Warabrook Boulevard
Warabrook NSW 2304
1300 307 907

IN WITNESS WHEREOF, the parties hereto have executed this Internship Agreement as of the day and year first above written.

Martin Thurgate
Director
For and on behalf of Diamond IT

DocuSigned by:
Martin Thurgate
65EC8CB0417D4DB... 11-07-2024

Stephen Cooke

Signed by:
Stephen Cooke
EBF69E4CA67D4B4... 15-07-2024

**“Annexure E”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE**

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure E**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor



[Back](#)

Account detail

General

General account information including loan type, loan amount, available funds and balance. Contracted repayment details and amount.

Repayment type	Principal, interest & fees
Interest rate type	Variable
Current interest rate (p.a.)	6.18 % ¹
Redraw activated	No

Rocket Repay Home
Loan
037-173 216802

-\$596,069.03

Loan details

Depicts fixed rate loan term, start and end date as available. Depicts redraw activation and fee chargeable to account.

Original amount borrowed	\$693,750.00
Loan start date	26 Oct 2018
Loan maturity date	26 Oct 2048
Annual Package Fee	\$0.00
Contracted repayment amount	\$3,984.00
Repayment cycle	Monthly
Contracted repayment date	26 Jul 2024

Offset

Depicts whether an offset arrangement is held and details account number.

Offset arrangement	None
--------------------	------

Statement

You can manage your statement options anytime.

Last statement date	12 Jun 2024	View statement
Statement delivery method	Paper	Edit

Interest

Shows current debit interest rate p.a. as per agreed loan contract. Also shows interest debited for last 3 financial years.

Interest paid financial year	2024 - 2025	\$0.00	Show more
------------------------------	-------------	--------	---------------------------

View interest and tax summary for all eligible accounts
1 Debit and credit interest rates are subject to change. Please view current interest rates for your product.



Rocket Repay Home Loan Statement of recent transactions

STEPHEN COOKE
1/213 MORGAN ST
MEREWETHER, NSW, 2291
AU

Account/Card number
037-173 216802

Joint account
Account opened:27-Oct-2018

Transactions

This statement covers transactions from 11-Apr-2024 to 18-Jul-2024

Current balance: -\$596,069.03

Date	Description	Withdrawal	Deposit
26 Jun 2024	INTEREST	-\$1821.43	
14 Jun 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1290.50
31 May 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1290.50
27 May 2024	INTEREST	-\$971.49	
17 May 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1290.50
03 May 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1290.50
26 Apr 2024	INTEREST	-\$1006.99	
19 Apr 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1290.50

Things you should know

1. This interim statement shows only those transactions that have been processed and may not include intraday transactions.



[Back](#)

Account detail

General

General account information including loan type, loan amount, available funds and balance. Contracted repayment details and amount.

Repayment type	Principal, interest & fees
Interest rate type	Variable
Current interest rate (p.a.)	6.24 % ¹
Redraw activated	No

Rocket Repay Home Loan
037-173 257778

-\$247,343.58

Loan details

Depicts fixed rate loan term, start and end date as available. Depicts redraw activation and fee chargeable to account.

Original amount borrowed	\$140,000.00
Loan start date	26 Oct 2018
Loan maturity date	26 Oct 2048
Annual Package Fee	\$0.00
Contracted repayment amount	\$1,649.00
Repayment cycle	Monthly
Contracted repayment date	26 Jul 2024
Amount saved to date	\$26,059.97

Offset

Depicts whether an offset arrangement is held and details account number.

Offset arrangement	None
--------------------	------

Statement

You can manage your statement options anytime.

Last statement date	17 Jul 2024	View statement
Statement delivery method	Paper	Edit

Interest

Shows current debit interest rate p.a. as per agreed loan contract. Also shows interest debited for last 3 financial years.

Interest paid financial year	2024 - 2025	\$0.00	Show more
------------------------------	-------------	--------	---------------------------



Rocket Repay Home Loan Statement of recent transactions

STEPHEN COOKE
1/213 MORGAN ST
MEREWETHER, NSW, 2291
AU

Account/Card number
037-173 257778

Joint account
Account opened:27-Oct-2018

Transactions

This statement covers transactions from 11-Apr-2024 to 18-Jul-2024

Current balance: -\$247,343.58

Date	Description	Withdrawal	Deposit
26 Jun 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1649.00
26 Jun 2024	INTEREST	-\$1312.69	
27 May 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1649.00
27 May 2024	INTEREST	-\$1272.22	
26 Apr 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1649.00
26 Apr 2024	INTEREST	-\$1316.39	

Things you should know

1. This interim statement shows only those transactions that have been processed and may not include intraday transactions.



[Back](#)

Account detail

General

General account information including loan type, loan amount, available funds and balance. Contracted repayment details and amount.

Repayment type	Principal, interest & fees
Interest rate type	Variable
Current interest rate (p.a.)	6.24 % ¹
Redraw activated	No

Rocket Repay Home
Loan
037-173 257671

-\$186,326.93

Loan details

Depicts fixed rate loan term, start and end date as available. Depicts redraw activation and fee chargeable to account.

Original amount borrowed	\$330,000.00
Loan start date	26 Oct 2018
Loan maturity date	26 Oct 2048
Annual Package Fee	\$0.00
Contracted repayment amount	\$1,242.00
Repayment cycle	Monthly
Contracted repayment date	26 Jul 2024
Amount saved to date	\$35,184.44

Offset

Depicts whether an offset arrangement is held and details account number.

Offset arrangement	None
--------------------	------

Statement

You can manage your statement options anytime.

Last statement date	10 Apr 2024	View statement
Statement delivery method	Paper	Edit

Interest

Shows current debit interest rate p.a. as per agreed loan contract. Also shows interest debited for last 3 financial years.

Interest paid financial year	2024 - 2025	\$0.00	Show more
------------------------------	-------------	--------	---------------------------



Rocket Repay Home Loan Statement of recent transactions

STEPHEN COOKE
1/213 MORGAN ST
MEREWETHER, NSW, 2291
AU

Account/Card number
037-173 257671

Joint account
Account opened:27-Oct-2018

Transactions

This statement covers transactions from 11-Apr-2024 to 18-Jul-2024

Current balance: -\$186,326.93

Date	Description	Withdrawal	Deposit
26 Jun 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1242.00
26 Jun 2024	INTEREST	-\$988.87	
27 May 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1242.00
27 May 2024	INTEREST	-\$958.38	
26 Apr 2024	DEPOSIT WESTPAC BANKCORPDIRECT DR 622136		\$1242.00
26 Apr 2024	INTEREST	-\$991.65	

Things you should know

1. This interim statement shows only those transactions that have been processed and may not include intraday transactions.

**“Annexure F”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE**

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure F**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor

FAMILY LAW ACT 1975

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA
(DIVISION 2) AT NEWCASTLE**

File No. NCC3896/2023

**STEPHEN CHRISTOPHER COOKE
(Applicant)**

AND

**HEATHER ANNE COOKE
(Respondent)**

COSTS NOTICE FOR STEPHEN COOKE

8 July 2024

Pursuant to 6.35 Central Practice Direction

- a. the total costs and disbursements incurred by Stephen Cooke in the proceeding to date
 - i. with former Solicitors (Clarity Lawyers) billed and paid \$127,000 as advised by Stephen
 - ii. with Ramsdens \$7,407 billed and paid
- b. an estimate of the anticipated costs expected to be incurred in each remaining stage of the proceeding;
 - i. up to and including mediation 27 June \$27,000
 - ii. directions hearing 9 July (presuming on line) \$1,500
 - iii. costs of preparing documents in response to Application in a Case and court appearance one day 23 July (excluding barristers fees) \$15,000
 - iv. preparing for and attending Readiness and Compliance Hearing (presuming on line) \$1,500
 - v. preparation for final hearing in respect of parenting, property and spousal maintenance \$33,000
 - vi. solicitors attendance at hearing to brief Counsel \$5,500 for each day. If 3 days, \$16,500
 - vii. barristers preparation for and attendance at 3 day court hearing say \$8,000 each day and allowing 3 days in preparation \$48,000
- c. an estimate of the likely duration of the final hearing and the total anticipated costs and disbursements expected to be incurred for the remainder of the proceeding



- i. the above estimates - not including i. above for up to and including the mediation, based on a three day hearing for parenting, property and spousal maintenance and total \$115,000
- ii. fees payable to the court - there is a setting down for hearing fee of \$745 for Division 2 and \$745 for the second and subsequent hearing days
- iii. other disbursements might include
 - a. Fees for a Family Report
 - b. If an independent childrens lawyer is appointed to represent the children, they are paid by the Legal Aid Commission which seeks a contribution from parents for their fees.



SIGNED:

Matthew Shepherd





COSTS NOTICE

Respondent – Heather Anne Cooke

This costs notice is given pursuant to Rule 12 of the
Federal Circuit and Family Court of Australia (Family Law) Rules 2021

YOUR ACTUAL COSTS (both paid and owing) up to and including Mediation

The actual costs that you have incurred up to and including the Mediation on 27 June 2024 are as follows:

Amount of Invoices paid:	\$81,556.09
Amount of Invoices remaining unpaid:	\$2,000.00
Unbilled work in progress including for the Mediation:	\$6,299.70
Total	\$89,855.79 (GST incl)

YOUR FUTURE FEES & DISBURSEMENTS (up to the conclusion of your matter)

Estimated future Fees and Disbursements (itemised hereunder)	\$91,260.00 (GST incl)
Overall Total of Actual and Future Fees & Disbursements	\$181,115.79 (GST incl)

ESTIMATED FUTURE LEGAL FEES

The estimate of future legal fees (including GST) up to including each future court event to the conclusion of your case is as follows:

Event	Estimate
1. Attendance at Mediation and reporting to you thereafter	\$5,720.00
2. Preparation for and attendance at Directions Hearing, and reporting to you	\$2,145.00
3. Preparation for Interlocutory Hearing including preparation of updated evidence, amending Orders Sought, updated Affidavit evidence, Case Outline and brief to Counsel (if required)	\$2,860.00
4. Attendance at Interlocutory Hearing and reporting to you thereafter (if required)	\$2,860.00
5. Preparation for and attendance at further Directions Hearing, and reporting to you thereafter (if required)	\$2,145.00
6. Conference with you prior to Family Report, perusal of Family Report, provision of advice to you thereafter	\$1,430.00



7.	Issuing Subpoena, reviewing documents produced under Subpoena and reporting to you thereafter (if required)	\$2,860.00
8.	Preparation for Court Ordered Family Dispute Resolution	\$2,145.00
9.	Attendance at Court Ordered Family Dispute Resolution (both session 1 and session 2) and reporting to you thereafter	\$4,290.00
10.	Preparation for and attendance at further Directions Hearing, and including reporting to you (if required)	\$2,145.00
11.	Preparation for and attendance at Compliance and Readiness Hearing, and reporting to you thereafter	\$2,145.00
12.	Preparation for and attendance at Trial Management Hearing, and reporting to you thereafter	\$2,145.00
13.	Preparation for Final Hearing including preparation of Trial evidence, witness evidence, Tender Bundle brief to Counsel and all other necessary preparations	\$10,725.00
14.	Attendance at Final Hearing (estimated 3 days) and reporting to you thereafter	\$17,160.00
15.	Attendance at Reserved Judgment (if required) and reporting to you thereafter	\$1,430.00
Total Estimated Legal Fees		\$62,205.00

ESTIMATED FUTURE DISBURSEMENTS

The estimate of future disbursements (including GST) up to including each future court event to the conclusion of your case is as follows:

General Disbursements		Estimate
1.	Barrister's Fees for preparation and attendance at Interlocutory Hearing (if required)	\$5,500.00
2.	Barrister's Fees for preparation and attendance at Final Hearing	\$22,000.00
Court Fees (GST Exempt)		Estimate
3.	Subpoena	\$65.00
4.	Hearing Fee (First Day)	\$745.00
5.	Hearing Fee (subsequent dates @ \$695 per day x 2)	<u>\$745.00</u>
Total Estimated Future Disbursements		\$29,055.00



ESTIMATED EXPENSES PAYABLE TO AN EXPERT WITNESS

There are none at present.

SOURCE OF THE FUNDS FOR THE COSTS PAID OR TO BE PAID

The costs paid or to be paid in this matter are being paid from the party's income and savings.



Anna Roberts

Date: 26 June 2024



“Annexure G”
AFFIDAVIT OF STEPHEN CHRISTOPHER COOKE

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF
AUSTRALIA AT SYDNEY**

IN THE MATTER OF

STEPHEN CHRISTOPHER COOKE
Applicant

AND

HEATHER ANNE COOKE
Respondent

ANNEXURE SHEET

This is the annexure marked with the letters “**Annexure G**” referred to in the Affidavit of **Stephen Christopher Cooke** sworn before me on 19 July 2024.

Before me: Matthew Shepherd

.....
Solicitor



Stephen Cooke <stephencooke.c@gmail.com>

JustFund - Your Statement

JustFund <clients@justfund.com.au>
To: stephencooke.c@gmail.com

Mon, Jul 1, 2024 at 9:34 PM



Your Account Statement

Hi Stephen

We hope you are well! Please find your latest JustFund Account Statement below.

Statement Date: 1 July 2024
Date of Funding Agreement: 29 November 2023
Interest Rate: 9.85%

Credit Balance

- **Available Credit (\$): \$0.00**

Debit Balance

- Funding Advanced (\$): \$80,000.00
- Administration & Assessment Fee (\$): \$3,040.00
- Monthly Fees (\$): \$392.00
- Security Lodgment Fee (\$): \$1,050.00
- Other (Capitalised Interest) (\$): \$0.00
- **Total Debit Balance: \$84,482.00**

Current Repayment Amount

- Accrued Interest Amount: \$5,547.65
- **Current Repayment Amount: \$90,029.65**

Please note that invoices approved in the last 48 hours may not be included in the above figures. Please just let me know if you would like a breakdown of all advances to date.

Please don't hesitate to let us know if you have any questions or if you would like to discuss any aspect of your matter.

Kind regards

The JustFund Team

www.justfund.com.au
P: 1300 644 980
E: enquiries@justfund.com.au
Privileged & Confidential

JustFund Account Statement

If you have any questions, comments or would like to discuss anything with us, please feel free to call or email us any time.

Account Details	
Statement Date:	16/07/2024
Loan Number:	L-01224
First Name:	Stephen
Last Name:	Cooke
Date of Funding Agreement:	29/11/2023
Interest Rate:	9.85%

Your Available Credit	
Credit Limit:	\$80,000.00
Funds Advanced:	\$80,000.00
Funds Repaid:	\$0.00
Total Available Credit:	\$0.00

Your Account Balance			
	Debits	Repayments	Unpaid Balance
Funds Advanced:	\$80,000.00	\$0.00	\$80,000.00
Administration & Assessment Fee:	\$3,040.00	\$0.00	\$3,040.00
Monthly Fee:	\$392.00	\$0.00	\$392.00
Security Lodgement Fee:	\$1,050.00	\$0.00	\$1,050.00
Other (Capitalised Interest):	\$0.00	\$0.00	\$0.00
Interest Amount:		\$0.00	\$5,547.65
Current Repayment Amount:			\$90,029.65

Repayment Details

Please direct all payments to the following bank account:

Account Name: JustFund Finance Pty Ltd

BSB: 062 815

Account Number: 1062 4116

Reference: Cooke -L-01224

History of Funds Advanced

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Payment Date	Amount Paid	Invoice Reference
06/12/2023	\$1,388.08	2004
06/12/2023	\$810.00	2027
14/12/2023	\$220.00	INV-0032
21/12/2023	\$13,503.80	2049
22/01/2024	\$6,047.60	2132
30/01/2024	\$2,750.00	INV-0048
02/02/2024	\$7,898.00	2199
19/02/2024	\$7,585.50	2228
27/03/2024	\$23,115.00	2401
16/04/2024	\$6,050.00	RebeccaVanINV-00342
23/04/2024	\$10,632.02	2418

Transactions may take up to 48 hours to appear on your statement. Please check all entries on this statement and notify us immediately of any errors, unauthorised transactions or omissions.

We may subsequently adjust debits and credits, which may result in a change to your account balance to accurately reflect the obligations between us. For information on resolving problems or disputes, contact us on 1300 644 980.